

Enrolled agent information for former IRS employees

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Certain former IRS employees can become an enrolled agent without taking the Special Enrollment Examination by virtue of past experience with the IRS.

Circular 230 specifies that such applicants "must have been regularly engaged in applying and interpreting the provisions of the Internal Revenue Code and the regulations relating to income, estate, gift, employment, or excise taxes."

In general, the experience must include at least five years in one of these taxpayer-facing field positions: appeals officer, special agent, revenue officer, revenue agent, tax specialist, tax law specialist, or settlement officer. Three of the five qualifying years must have occurred within the last five years prior to separation from the IRS.

These requirements are intended to ensure the applicant's IRS experience provides him/her with the same overall background as a public sector candidate who passes all three parts of the SEE. If the former employee's IRS experience does not provide the same overall background, enrollment will be restricted to a specific area of representation.

To apply for enrollment based on former IRS experience, you must:

- Submit an application for enrollment within three (3) years from the date of your separation with the IRS, using [Form 23](#) [PDF](#);
- include information regarding education, training, licenses, and work experience; and
- pass a background check to ensure that you have not engaged in any conduct that would justify the suspension or disbarment of an attorney, CPA, or enrolled agent from practice before the IRS. This check will be conducted on your behalf upon submission of [Form 23](#) [PDF](#).

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